



Office of Commissioner for Trademarks

Deputy Commissioner for Operations

Deputy Commissioner for Examination Policy

Trademarks Operations Program Management Office Project

Trademarks Policy Program Management Office Project

Examination and Attorney Assistant

Examination Quality Review

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U.S. PATENT & TRADEMARK OFFICE

TRADEMARK, FINANCIAL & ENTERPRISE BUSINESS SERVICES DIVISION REQUEST FOR INFORMATION (RFI)

EXAMINATION AND ATTORNEY ASSISTANT EXAMINATION QUALITY REVIEW

I. Introduction

The purpose of this RFI is to assist the government in conducting market research. This information will be used for market research only. Respondents are encouraged to submit capability statements for one, or both, projects in Section IV, Targeted Concerns and Requirements. The government is not obligated to release a future solicitation.

II. Background

The United States Patent and Trademark Office (USPTO) is the Federal Agency for granting U.S. patents and registering trademarks. By granting patents, the USPTO fulfills the mandate of Article I, Section 8, Clause 8, of the Constitution that the legislative branch "promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries." The USPTO registers trademarks based on the commerce clause of the Constitution (Article I, Section 8, Clause 3). The USPTO carries out its mission by examining patent and trademark applications, issuing patents and registering trademarks, disseminating patent and trademark information to the public, and by encouraging a domestic and international climate in which intellectual property can flourish.

The USPTO is guided by the Trademark Act of the United States Code (15 U.S.C. §1052). The agency seeks expertise in Artificial Intelligence (AI) capabilities as they specifically relate to assisting and enhancing the work of examining attorneys and other production staff during trademark examination. As well, the agency seeks AI capabilities to support the critical requirement of examination quality review and enable greater efficiency and effectiveness. The USPTO plans to diligently assess vendor/organization capabilities and interest. As the world's body of knowledge increases and tools expand to access information, the ability of individuals to review and filter this content is increasingly challenging. The USPTO is interested in the use of advanced technology to supplement and improve USPTO emerging technology capabilities with differentiating solutions that utilize all manner of advances. Quantum computing, artificial intelligence, machine learning, natural language processing, etc. are examples of technologies that might assist in narrowing the broad information base to manageable sizes for more careful individual review. This RFI will explore developing market interest-capacity in supplying cutting-edge technologies to augment current USPTO Trademark capabilities.

As a federal agency, it is important for the USPTO to be able to explain all decisions made. Because of this, solution capabilities must be transparent to the USPTO and as well as to the general public. Black box solutions will likely not be accepted. The USPTO must be able to explain and generate

a full and clear record to explain how decisions are made. In order to provide a complete, accurate, and uniform record of what has been considered by attorneys or other staff, the U.S. Patent and Trademark Office has established procedures for recording the actions of the staff in the “prosecution history” of every application or action. Such a record is of importance to anyone evaluating the quality of a trademark, particularly if the trademark is being opposed or involved in litigation (see *Trademark Manual of Examining Procedure -- TMEP*).

“Trademark examination” refers to the series of interactions between intellectual property owners (or their representative – typically an attorney), and examining attorneys (or pre/post staff) that can result in a registered mark. When the Applicant (or representative) submits their mark application, the USPTO assigns a Trademark Examining Attorney to review the application to determine whether to register the proposed mark. One of the most important tasks of the Trademark Examining Attorney is to substantively review the application for legal sufficiency. Examining attorneys and associated examination staff operate in a “production” capacity and are focused on two main components of the *USPTO’s Strategic Plan*: “pendency” and “quality.” Trademark leadership describes its perspective on pendency as being:

Committed to meeting the business needs of our customers by continuing to provide an indication of registrability and a final decision on registration in a timely manner. Because the volume of trademark application filings can be volatile, we will continue to align trademark examination capacity with incoming workload and current inventory through various management techniques, such as the use of forecasting and analytics to align staffing to pendency goals.

Although the current pendency targets appear to serve the trademark community well, we will continually work with our customers to develop long-term pendency targets that recognize the changing needs of existing and new trademark customers. We will also focus on optimizing pendencies for all types of actions throughout the Trademark organization.

Trademark management defines its focus on quality as:

Quality measurement takes into consideration adherence to registrability standards, comprehensive excellence of search, evidence, writing, and trademark attorney decision-making. We have routinely achieved our trademark quality targets and are committed to sustaining these high-performance levels.

The quality of the Trademark Register depends on the validity of the claims that marks are in use for the goods and services included in registrations. We will continue to take steps to improve the accuracy and integrity of the Register, including by auditing trademark maintenance affidavits to require proof of use on claimed goods and services and exploring other processes that “declutter” the Register.

Respondents are expected to return potential capabilities with timeliness and quality goals in mind. Potential solutions that extend pendency outside agency targets or quality outside the range of acceptable performance will be removed from consideration.

III. Market Research Guidance

This Request for Information (RFI) market research survey and subsequent market research stages listed below are intended as preliminary market research information gathering which the USPTO will use to determine which vendor(s) is/are the most likely to successfully meet the agency's needs. The RFI is not a solicitation for a contract. The Contracting Officer (CO) may elect to utilize the Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A), which provides for the Alternative Competition Method defined in section 6.1.1 of the Patent and Trademark Office Acquisition Guidelines (PTAG). If the USPTO CO elects to use PTAG 6.1.1. Alternative Competition then the CO may decide to progress to issuing a solicitation to the vendor(s), who the Contracting Officer Representative (COR) and CO determine from the PTAG 6.1.1. process to be most likely to successfully meet the agency's needs. Throughout this market research process, capable vendor(s) may be determined eligible to participate in an alternative competition. This multi-staged market research effort is not a request for proposals. It is a market Research RFI.

The USPTO intends to use a rapid-multi-staged market research approach which seeks to efficiently engage industry early in the process and foster innovation, especially in the market research for **Examination and Attorney Assistant Examination Quality Review**. This innovative RFI market research model allows the USPTO and Industry participants to quickly and collaboratively co-create solutions, moving efficiently from market research to possible solicitation and then to potential award with maximum transparency and minimum time. The **Examination and Attorney Assistant Examination Quality Review** market research RFI envisions a process using a multi-staged, "show me, don't tell me approach" – asking industry for evidence-based, effective, and efficient approaches applicable to USPTO's specific mission of granting patents and registering trademarks.

Failure to submit a response to Stage One eliminates vendors from participating in future Stages, and from any additional consideration for participation in an Alternative Competition PTAG 6.1.1.

The **Examination and Attorney Assistant Examination Quality Review** market research will leverage initial stages and stages are envisioned as:

- ☐ Stage One: Industry Survey RFI Addressing Target Concerns and Requirements. (This survey includes the Questionnaire responses outlined in Section VI of this document.

Note: Participation in Alternative Competition will only be used if the contracting officer elects to use Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A)

- ☐ Stage Two: Invitation to submit Concept Paper(s) & present/demonstrate a prototype solution (e.g. bake-off).

- ☐ Stage Three: Identification of the final vendor(s) to participate in the Alternative Competition, Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A).

Note: The USPTO reserves the right to issue multiple solicitations depending on the results of this market research and the agency's requirements.

- ☐ Stage Four: Issuance of Solicitation(s); Evaluation(s), and Contract Award(s). Overarching Plan & Pilot(s).

After each stage, USPTO's CO and COR will determine if the subsequent stage is necessary. If after Stage One or any subsequent stage's review and analysis of the market research information, the CO and COR determine that sufficient information has been gathered, the USPTO, may determine which vendor(s) is/are the most likely to successfully meet the agency's needs and possibly move to the next Stage or directly to Stage Four (Identification of the final vendor(s) to participate in the Alternative Competition) and will enter Stage Four, issue a solicitation.

IV. Targeted Concerns and Requirements

Examination and Attorney Assistant: The Office of the Deputy Commissioner for Trademark Operations is tasked with processing and examining the majority of filings and legal instruments necessary to obtain and maintain a trademark registration. This is done primarily through the Law Offices, which are comprised of examining attorneys that handle substantive legal examination up until registration or abandonment, the Post Registration Unit, which is comprised of specialists and handles maintenance filings and other matters after registration, and other specialized business units handling more specific parallel processes such as the Madrid Processing Unit (handling Section 66(a) filings) and the Intent to Use Unit (handling filings related to allegations of use), among others.

Examining attorneys within the law offices receive new filings and manually issue-spot for informalities, practice and/or procedural issues, and substantive (statutory) refusals. Once all issues are identified, the examining attorney issues an Office action (OA) informing the applicant of the issues and their options for correcting the issues, if any. When an applicant responds to an OA or submits another type of filing, examination generally occurs again to determine whether previously identified issues have been obviated or resolved and whether new issues are present. A similar process occurs in the other Operations business units.

Requirement 1: *Search strategy.* Provide a suggested search strategy in each incoming application file for the examining attorney to review and use, if appropriate.

Requirement 2: *Issue spotter for formalities.* Issue spot applications and other filings for formalities Checklist-style report integrated into TM Exam. Include tracking functionality to confirm whether raised issues were resolved. Generate reports on aggregated data on number and types of issues identified.

Requirement 3: *Issue spotter for statutory compliance.* Identify potential statutory compliance issues that staff must evaluate before approval for publication. Checklist report integrated into TM Exam. Use web searching capabilities to identify relevant evidence, provide URLs to the websites being used for evidence, and capture screenshots of websites for use as evidence supporting statutory refusals and/or requirements. For potential surnames, search the name in LEXIS/NEXIS® (or other) surname database.

Requirement 4: *ID checker: identification and classification checker/validator.* Review identifications and classifications in incoming filings for consistency with USPTO ID policy. Identify those IDs that are directly pulled from the ID Manual that need no review. Identify those IDs that are from the ID Manual but have fill-in the box text; review the text box language for consistency with USPTO ID/Class policy. Identify those IDs that are custom created for consistency with USPTO ID/Class policy. Use information provided in the application, such as the specimen of use, to suggest acceptable ID. In each case, generate suggestions for acceptable alternatives to the ID.

Requirement 5: *Office action drafter.* Based on results of the issue spotters and ID checker, suggest form paragraphs and/or draft a full Office action using form paragraphs. Provide AI model reasoning when requested.

Requirement 6: *Office action reviewer.* Review all office actions to ensure “issue spotter checklist” items were raised or resolved. Review all final office actions to evaluate whether the action was premature if new issues were raised. Review new non-final actions to evaluate whether the action should have been a final. Provide AI model reasoning when requested.

Examination Quality Review: The Trademark Quality Review Office (TQR) is chartered and staffed to assess and analyze the quality of trademark examination at the USPTO as mandated under 35 USC sections 1, 2 & 13. Our reviews (a) identify statutory and procedural compliance as well as best practices in Office actions, (b) determine quality metrics to report to our stakeholders and (c) provide feedback to the Trademark Operations units. In addition, we provide training resources and quality improvement assistance to law offices, service units, and the public.

A quality trademark registration, at the time of issuance, meets the requirements of the Lanham Act and case law, resulting in a registration that is durable — not only legally sound, but clearly defined and able to provide reliable protection for the trademark owner. For the USPTO’s part, quality registrations emerge through quality examination. Examining attorneys must ensure statutory compliance, as viewed through a reasonableness standard, and every refusal should cite the controlling statute, notice the applicant, and include supporting evidence as necessary. The purpose of the quality management system is to improve trademark registration quality by ensuring that decisions by examining attorneys to refuse or approve a trademark application comply with all legal requirements.

The Office of Trademark Quality Review (TQR) is the core of the quality management system and performs independent quality review of examining attorney office actions to ensure the examining attorney’s decision to approve or deny a trademark application complies with the Lanham Act and case law. TQR’s random review of outgoing office actions and applications approved for publication are used to generate and report Trademarks’ statutory compliance measures for quality. When TQR identifies a quality error during its review, the law office to which the examining attorney belongs is notified and assumes responsibility for taking appropriate action to address the error. The TQR program analysts similarly review actions taken by specialists in the Trademark Services unit, report those metrics, and provide the specialists training to address any systemic deficiencies in performance.

However, TQR quality review is only one component of Trademarks’ overall quality management. The second pillar is law office manager-led writing review of examining attorneys’ work product for performance rating purposes. As with TQR’s review, the managing attorney writing review involves

a review of the search, the writing, the evidence, statutory compliance, and practice and procedure issues.

The third pillar of quality review is Official Gazette pre-publication review by TQR, ID Class, and managers. The electronic Office Gazette (eOG) is a bi-weekly publication of trademark applications that, inter alia, have been approved by examining attorneys for publication. Trademarks' staff review the eOG at the approved for publication stage to catch any errors made by examining attorneys or support staff before the case is published for opposition. If there is an error, these eOG reviewers return the case to the appropriate staff member for corrective action.

- ID/Class attorneys review the eOG for compliance with Trademarks policy on identification and classification.
- Managing attorneys review the eOG for compliance with statutory refusals.
- TQR analysts review the eOG primarily for issues that fall under TMEP Chapter 800. Queries are made for 1) Print Corrections – typographical errors; and 2) legal inconsistencies or errors in the record.

Requirement 1: Search strategy. Automate review of the examining attorney's search strategy to ensure consistency with USPTO policy and flag any deficient searches for immediate handling.

Requirement 2: Issue spotter for formalities. Issue spot applications, approvals for publications, Statements of Use approvals, and final actions for missed formalities issues.

Requirement 3: Issue spotter for statutory compliance. Issue spot applications, approvals for publications, Statements of Use approvals, and final actions for missed statutory refusals. Use web searching capabilities to identify relevant evidence, provide URLs to the websites being used for evidence, and capture screenshots of websites for use as evidence supporting statutory refusals and/or requirements. For potential surnames, search the name in LEXIS/NEXIS® (or other) surname database.

Requirement 4: Office action reviewer. Review all office actions to ensure "issue spotter checklist" items were raised or resolved. Review all final office actions to evaluate whether the action was premature if new issues were raised. Review new non-final actions to evaluate whether the action should have been a final. Analyze all office actions over time for trends to target interventions needed for examiners or on electronic systems/forms.

Requirement 5: eOG review. Review identifications and classifications in the electronic Official Gazette for consistency with USPTO ID policy. Automate a "dead-on" search for conflicting registered or pending trademarks. Review for typographical errors and legal inconsistencies or errors in the record.

Requirement 6: Automation with AI workflow. Automate and standardize the quality reporting practices for each of the Trademark Service units. Create a quality review portal that allows for electronic receipt of quality review cases and automatically delivers results to the Trademark Service units.

V. Functional Areas

The vendor must provide the USPTO a Federal Risk and Authorization Management Program (FedRAMP) certified (or in work) Artificial Intelligence/Machine Learning (AI/ML) driven solutions that are scalable. The vendor will operate and maintain the information technology infrastructure necessary to meet security, performance, and compliance, and provide documentation to support training of USPTO users as set forth herein. The vendor must also provide usage data and metrics to the USPTO.

Note: The USPTO is only accepting submissions from vendors that are currently FedRAMP certified or in work. If a vendor does not have – or seeking – a FedRAMP certification, they are not eligible to participate in this RFI. Vendors must submit their FedRAMP certification with their response.

Any questions regarding how to respond to the RFI or recommend changes to the RFI are due by 12 Noon EST on Wednesday, April 22, 2026. Questions must be submitted electronically by email to Alan Elder and James Wuest at alan.elder@uspto.gov and james.wuest@uspto.gov.

VI. Stage One Questionnaires

Stage One Questionnaire responses must be included in your RFI response and submitted electronically by email to both Alan Elder and James Wuest at alan.elder@uspto.gov and james.wuest@uspto.gov. Questionnaire responses must consider and be consistent with USPTO's Targeted Concerns and Requirements in IV. above. All questionnaire responses must be in dark font with no less than 10-point font size for legibility. Complete the following questionnaire to provide the requested information as outlined below, with no substitutions, additions, or deletions. Pages beyond the page length limit set forth below for each portion will not be considered

All vendor Stage One responses and RFI submissions are due by 12 Noon EST on Wednesday, May 6, 2026.

All questions and submissions must be submitted electronically to both Alan Elder and James Wuest at alan.elder@uspto.gov and james.wuest@uspto.gov

a. Narrative 1: Corporate Overview (No longer than five pages in length)

- i. Name of company
- ii. Brief description of your company
- iii. Name of business unit responding to the RFI (if applicable)
- iv. Business size and size standard/applicable North American Industry Classification System (NAICS) codes
- v. Unique Entity Identified (UEI)
- vi. Website address
- vii. Applicable certifications and authorizations, such as Federal Information Security Management Act (FISMA) compliance and FedRAMP authorization for cloud service providers
- viii. Commercial and government markets for which your company provides an AI/ML capability or solution to similar problem sets
- ix. Federal government contract vehicles, if any, under which your company offers AI/ML tools/capabilities

- x. Is your company considered a small business under NAICS code 519290? (Yes/No)
- xi. Type of small business, if applicable (e.g., Woman-Owned, Service-Disabled Veteran Owned, 8(a), HUBZone, etc.)
- xii. Do you have a cost accounting system deemed adequate by a cognizant audit agency? (e.g., DCAA)
- xiii. Do you have an approved purchasing system?
- xiv. Company points of contact (Name, position, phone number, and email address)

b. Narrative 2: Prior and Current Corporate Experience (No longer than three pages in length per example)

- i. Provide a brief description of your company's experience providing the same or substantially similar services and/or product solutions to both commercial and government organizations
 - 1. Submit names of no more than three references
 - 2. Date of service
 - 3. Dollar value
 - 4. Contractor performance assessment ratings, if applicable
- ii. Responses should include references of similar size, complexity, and scope. Information should be pertinent and specific.
- iii. All corporate experience must be performed by the respondent as a prime contractor. Please confirm that your company served as the prime contractor for each reference.

c. Narrative 3: Corporate Capabilities and Approaches (No longer than eight pages in length)

- i. Describe the services and/or product solution(s) for the areas described in section III. The responses must include an overall description of the proposed services and/or solution(s) and provide technical data and a demonstrated ability for those areas identified.
- ii. What is your ability to use existing assets or procure, customize/configure, maintain, and/or provide technical support for the resources needed for the proposed services and/or product(s)?
- iii. Describe technical benefits of your proposed services and/or product solution(s) in terms of:
 - 1. Existing technologies or resources
 - 2. Improvements/enhancements
 - 3. Cost efficiencies of your specific approach
 - 4. Any other support capabilities that provide service and/or product excellence
- iv. What is your approach for transitioning your services to a new customer?
- v. How do you typically integrate your systems with a customer's infrastructure, back-end systems, and website?
- vi. What solution model (e.g., e.g., software as a service, hosted in USPTO managed cloud, etc.) would you recommend for the USPTO?
- vii. Describe options that your company can implement to set up an environment (sandbox) to demonstrate your product and allow USPTO staff to perform a hands-on evaluation of your product
- viii. Provide a Voluntary Accessibility Product Template (VPAT)

d. Narrative 4: Cost (No longer than two pages in length)

- i. What information would you need from the USPTO in order to provide a priced solution?
- ii. Which contract type does your company recommend for this requirement?
 - a. Time-and-Materials (T&M)
 - b. Labor-Hour (LH)
 - c. Firm-Fixed-Price (FFP)
 - d. Cost-Plus-Fixed-Fee (CPFF)
 - e. Cost-Plus-Incentive-Fee (CPIF)
 - f. Fixed-Price Incentive Firm Target (FPIF)
 - g. Other
- iii. Describe what pricing units you typically utilize for similar services (e.g., per hour, each, etc.)

VII. Stage Two: Invitation to submit Concept Paper(s) & Present/Demonstrate a Prototype Solution (Oral Presentation). (e.g. bake-off).

After assessment of vendors' Stage One submissions, the Contracting Officer and COR will invite those vendors it considers to be viable contenders to receive an Alternate Competition Solicitation to submit Concept Papers and Present/Demonstrate a prototype solution (Oral Presentation). ***If advised to proceed to the Second Stage, all vendors' RFI responses to the Second Stage Concept Paper & Present/Demonstrate Prototype Solution (Oral Presentation) submissions will be due at a date and time specified in the advisory letters from the Contracting Officer. (Vendors advised not to proceed may submit next stage responses, however, these vendors are strongly encouraged not to submit and conserve their resources because they will be at a significant disadvantage. The intent of the advisory notice is to minimize development and other costs for those vendors with little to no chance of receiving a solicitation.)***

VII.

VIII. Disclaimer

This RFI is issued solely for informational, market research, and planning purposes only. It does not constitute a solicitation or a promise to issue a solicitation in the future. This RFI does not commit the government to contract for any supply or service whatsoever. Please be advised that all submissions become government property and will not be returned. The USPTO will not provide reimbursement for costs incurred in responding to this RFI. Respondents are advised that the USPTO is under no obligation to acknowledge receipt of the information received or provide feedback to respondents with respect to any information submitted under this RFI. Information in responses will be held confidential to the extent permitted under applicable laws and regulations.

**IX. Patent and Trademark Office Acquisition Guidelines (PTAG) 6.1.1
Alternative Competition.**

The government contemplates utilizing the Alternative Competition Method in accordance with the PTAG and the Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A). This RFI is



intended as preliminary market information gathering which the USPTO will use to determine which vendor(s) is/are the most likely to successfully meet the agency's needs and are thereby eligible to participate in an alternative competition. After conducting market research, the contracting officer and contracting officer's representative will use their technical expertise and understanding of the marketplace to determine which vendor(s) is/are most likely to successfully meet the agency's needs and are thereby eligible to participate in an alternative competition. As a result of this market research, the solicitation will only be issued to the limited number of qualified vendor(s).

This RFI is not a request for competitive proposals.

The government will not utilize formal evaluation criteria for market research associated with PTAG 6.1.1. The government will review RFI responses to determine which vendor(s) are most likely to successfully meet the agency's requirements for **Examination and Attorney Assistant Examination Quality Review**